

receiver of it at a salary (*d*); and even should he offer his services gratuitously, he would not be appointed except

(*d*) *Sutton v. Jones*, 15 Ves. 584; 515; and see *Morison v. Morison*, 4 Sykes v. Hastings, 11 Ves. 363; — M. & Cr. 216.
v. Jolland, 8 Ves. 72; *Anon.* 3 Ves.

In New York the compensation fixed by statute is five per cent on \$1000, two and a half per cent on the next \$9000, and one per cent on the balance, to executors, &c., and the same amount is allowed trustees; *Livingston's Case*, 9 Paige, 442; *Re Schmidt*, 3 Dema. 245; *Re Schell*, 53 N. Y. 263; *Greer v. Greer*, 5 Redf. 214; also their reasonable expenses; *Dakin v. Demming*, 6 Paige, 95; compensation is reckoned on all the estate; *De Peyster's Case*, 4 Sandf. 514. If a trust deed grants an extra compensation it will not be allowed; *Griffin v. Barney*, 2 Comst. 372; *Nichols v. McEwen*, 21 Barb. 66. A gross sum or a charge by the day will not be allowed; *Valentine v. Valentine*, 2 Barb. Ch. 430, but see *Jewett v. Woodward*, 1 Edw. Ch. 199; the compensation is not a matter of discretion; *Morgan v. Hannas*, 49 N. Y. 667; *Meacham v. Sternes*, 9 Paige, 405; double commissions will not be allowed in case of a change of trustees; *Hosack v. Rogers*, 9 Paige, 468; *White v. Bullock*, 20 Barb. 99; *Jones's Case*, 4 Sandf. Ch. 616.

In Massachusetts, trustees are allowed such compensation as the court orders and their expenses. Five per cent on the whole amount has been allowed; *Barrell v. Joy*, 16 Mass. 229; *Longley v. Hall*, 11 Pick. 124; *Ellis v. Ellis*, 12 Pick. 183; *Urann v. Coates*, 117 Mass. 41; they will vary with the circumstances of the case; *Blake v. Pegram*, 101 Mass. 592; *Dixon v. Homer*, 2 Met. 422; *Scudder v. Crocker*, 1 Cush. 382; and an agreement with the *cestui que trust* may be ratified; *Bowker v. Pierce*, 130 Mass. 262; commissions for change of investments must be paid out of the income; *Heard v. Eldredge*, 109 Mass. 258.

In Maine there is an allowance of a dollar a day, a dollar for each ten miles of travel and a commission to be fixed by the court not to exceed five per cent, according to services rendered.

In New Hampshire the commission varies from two to five per cent, which the court allows in addition to travel and attendance; *Tuttle v. Robinson*, 33 N. H. 118; *Wendell v. French*, 19 N. H. 205.

In Connecticut the court exercises its discretion; *Clark v. Platt*, 30 Conn. 282; *Cantfield v. Bostwick*, 21 Conn. 555.

In Vermont there is a statute provision, and an additional allowance is sometimes made; *Hubbard v. Fisher*, 25 Vt. 542; *Evarts v. Nason*, 11 Vt. 122.

In Pennsylvania it is in the discretion of court; *Carrier's App.* 79 Pa. St. 230; *Norris's App.* 71 Pa. St. 107; *Hermstead's App.* 60 Pa. St. 423; a mistake of judgment will not forfeit commissions; *Meyers's App.* 62 Pa. St. 109. Five per cent is the usual allowance; *Wood's App.* 86 Pa. St. 346; *Pennell's App.* 2 Barr. 216. Double commission are never allowed; *Aston's Est.* 5 Whart. 228. Nor any on reinvestments; *Hemphill's App.* 6 Harris, 303; extral and legal services may be paid for; *Lowrie's App.* 1 Grant. Cas. 373; but not if made necessary through trustee's fault; *Stearly's App.* 38 Pa. St. 525; a commission on the income only of investments is allowed; *McCausland's App.* 38 Pa. St. 466; the amount allowed is for services rendered and not by way of a percentage; *Montgomery's App.* 86 Pa. St. 230; *Wood's*